**Work Order ID :** 9153369
**Please have on site contact sign this copy and keep this for your record.**

## General Information

**Service Title**
Office Set Up - monitors and docking stations. Work in team. 8:30am-5pm

**Service Schedule**
On Wednesday January 13th 2021
At 8:30 am EST

**Manager of Work Order**
Luke Ivanov

**Assigned Provider**
Sadiqa Thornton (user id: 24217)

**Service Location (type: Commercial)**
Macy's New York City Herald Square Office

NEW YORK, NY, 1001

**On Site Contact**

## Additional Fields

**Store number/Addressee**
**Tip:** Customer Store number/ Terminal ID
Macy's New York City Herald Square Office

**Site contact**
**Tip:** Site contact
Jim Schiede 631-806-4858 or Manuel Lara 925-719-3744

## Data to Note

**Site Result [required]**

## Necessary Equipment

## Full Work Description

**REQUIREMENTS**

- **Dress code**-- Casual business attire, including **COLLARED SHIRT (WITHOUT LOGOS)**, jeans, and comfortable
- shoes during the entire installation process. **UNDER NO CIRCUMSTANCES SHOULD: hats, baggy jeans, open-toed shoes, fatigues, or sweatsuits be worn.** Clothes must be worn in a professional manner, neatly pressed and tidy.
- **NCR identification badge** must be worn and visible at all times.
- **MUST BE** able to **lift a minimum of 45 pounds**
- Work Order MUST BE fully completed while onsite by using the FN-Mobile App (**Smartphone**)
- Required **tools** (see below for details)

**OVERVIEW**

This will be setting up monitors and docking stations. One site. Start time 8:30am. Working hours: 7.5 hours onsite.

**Arrival:**

Technician will ***enter the building by the Employee Entrance on 35th Street between loading dock and deli on the corner of 35th street and 7th ave***. Technicians will need to sign in at the security desk and show identification.

**Contact: Jim Schiede or Manuel Lara**

- Wellness Check: Technicians will be required to answer a series of wellness question and have their temperature checked after signing in.

- Techs must comply with CDC guidelines for install (wear mask and maintain social distancing)

**Kickoff Meeting 9:00am**

Kickoff Meeting will be held at 9:00am on the 19th floor to review these instructions and provide technician assignments. Meeting will last approximately 15 minutes.

**Tools Required: Phillips Head Screw Driver**

**PLEASE REVIEW THE ATTACHED INSTALL MANUAL**

**REQUIRED TOOLS:**

Phillips Head Screw Driver

**Check in / Check out requirements:**

Call site contact: **Jim Schiede 631-806-4858 or Manuel Lara 925-719-3744**

Personnel issues will go to Li250033@ncr.com
SD230348@ncr.com

## Tasks

Some tasks below may be eligible for completion by calling 1-877-573-6330

### Pre Visit

1. Provider must download a file
2. Provider must **PPE must be worn (mask and gloves) check temperature before going to site must be below 98.6**
   (Code 196 604 306 332 1#)
3. Provider must **Print your NCR Badjge. NCR identification badge must be worn and visible at all times.**
   (Code 177 600 416 332 1#)
4. Provider must set start time

### On Site

1. Provider must **Enter the building by the Employee Entrance on 35th Street between loading dock and deli on the corner of 35th street and 7th ave**
   (Code 134 600 636 332 1#)
2. Provider must check in
   (Code 117 606 746 332 1#)
3. Provider must **call the site contact: Jim Schiede 631-806-4858 or Manuel Lara 925-719-3744**
   (Code 169 608 056 332 1#)
4. Provider must check out
   (Code 131 608 566 332 1#)

### Post Visit

1. Provider must enter close out notes

## Approval of Work

I acknowledge that the work has been satisfactorily completed.

Name

Arrival Time AM / PM

Signature

Departure Time AM / PM

Date

# CONFIDENTIAL!

**The following information is confidential and should not be seen by anyone but you, the assigned provider.**

## Confidential Information

Call site contact: ~~**Jim Schiede 631-806-4858 or Manuel Lara 925-719-3744**~~

## Deliverable Uploads

Make sure you collect and upload any required deliverables into the following deliverable categories:
[ ] Misc

**Supplemental Terms**

NCR Terms and Conditions

These terms (the "Supplemental Terms") supplement the Standard Work Order Terms and Conditions that you agreed to via the (the "Standard Terms") that apply to the Work Order. The Standard Terms together with the Supplemental Terms are the "Agreement". In the event of a conflict or inconsistency between the Standard Terms and the Supplemental Terms, the Supplemental Terms shall control.

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1. Independent Contractor Relationship

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1. Provider's relationship to NCR will be that of an independent contractor. Nothing in this Agreement shall be construed to create any partnership, joint venture, employer-employee or agency relationship between NCR and Provider or between NCR and Provider's personnel. Provider will not represent to any third party that any such relationship exists. Provider understands that Provider is a self-employed person and NOT an employee of NCR. Therefore, Provider understands that Provider is NOT entitled to any of the rights, privileges, benefits, or protection provided for employees. This includes holiday, sick or vacation pay, insurance of any kind, overtime, unemployment benefits, worker's compensation or any other employee benefits.

1. Provider may make any and all decisions concerning the methods, techniques or approaches used in performing Services under this Agreement.

1. The independent Provider relationship will be non-exclusive. Provider will be free to work with third parties provided that such work does not: (a) result in a breach of Provider's obligations pertaining to Confidential Information and Trade Secrets, and (b) does not interfere in Provider's ability to satisfactory complete Services under this Agreement.

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1. Tax Liability, Benefits and Expenses. Provider acknowledges that Provider is an independent contractor and not an employee of the Company. Provider agrees as an independent contractor to be solely responsible for all taxes and other costs and expenses attributable to the compensation payable to and Services provided by Provider under this Agreement, and has taken or will take any and all action(s) to comply with all applicable federal, state, and local laws pertaining to the same. Provider acknowledges and agrees that Provider is not entitled to, and shall have no claim for, workers' compensation insurance benefits, unemployment compensation benefits, or any medical or other employment benefits (including but not limited to, vacation pay, sick leave, retirement benefits, disability benefits) from the Company. Provider is responsible for furnishing Provider's own transportation and tools.

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1. Representations and Warranties. Provider represents and warrants that the performance of Services by Provider under this Agreement will not violate or conflict with any provision of, and does not, nor will it, constitute a default under a breach of (a) any agreement which Provider is a party to; (b) any order, writ, injunction, decree or judgment of any court or governmental agency; or, (c) any law, rule or regulation applicable to Provider. Provider further represents and warrants that, during the Term, it shall: (a) fully comply with the rules, regulations and policies of the Company with respect to the rendition of the Services rendered by Provider under this Agreement, which may be amended from time to time by the Company without prior notice to the Provider; (b) work with the Company is setting up mutually agreeable schedules within which to perform the Services agreed to herein; (c) maintain appropriate licensure and certifications, as applicable, in accordance with the laws of the state where the work is being performed; (d) copy of Provider's insurance coverage shall be provided to Company upon request; (e) be available to provide such Services at such time or times and at such place or places as are mutually convenient to both parties; (f) ensure that Provider personnel assigned to Company are legally authorized to work in the United States while performing Services for Company under this Agreement and have the qualifications, the experience, and the ability to properly perform the Services. Provider shall not receive training from NCR. At Provider's own discretion, or upon the reasonable request from NCR, Provider shall provide updates on the status of any Services Provider is performing and any significant developments, progress or problems in completing Services under this Agreement (g) comply with all applicable federal, state and local laws in the performance of Services under this Agreement; and, (h) keep and maintain (or cause to be kept and maintained) appropriate records, as determined by the Company in conjunction with Provider, relating to all Services rendered by Provider under this Agreement. Provider shall prepare, maintain and attend to, in connection with the services rendered by Provider under this Agreement, all reports, files and correspondence necessary or appropriate in the circumstances, as determined by the Company. Such records, reports, files, raw data, outcomes, client information and correspondence, including any Company client records, shall belong to the Company. Provider further agrees to render such Services conscientiously, diligently, in good faith, and to the best of Provider's professional ability.

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1. Termination

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1. Termination of Agreement. Either Party may terminate this Agreement without cause at any time, provided that Sections 2, 3, 5-11 and 13 shall survive any termination or expiration of this Agreement.

1. Effect of Termination on Compensation. Upon termination of this Agreement for any reason, Provider's right to any compensation under this Agreement shall immediately cease, and Provider shall be entitled to receive only those amounts earned for Services prior to the effective date of such termination, pursuant to the terms of Paragraph 4 of this Agreement.

1. Return of Information. At the termination of this Agreement for any reason, and upon the Company's request, Provider shall return to the Company all Company property, including any Confidential Information or Trade Secrets (as defined in this Agreement), manuals, lists, files, memoranda, access keys, passcodes and other printed or reproduced material provided by the Company to Provider or created by Provider in connection with the performance of Services under this Agreement. Upon termination of this Agreement for any reason, Provider acknowledges that Provider shall not have any authority to access any of the Company's files, electronic systems or networks, including but not limited to, electronic mail, databases, Word or Excel files, document management systems, hard drives, software, or flash drives.

1. Restrictive Covenants

1. Provider acknowledges that Provider's Services are unique and valuable to the business of the Company, especially since Provider has and will have access to the Company's Trade Secrets and other Confidential Information. Provider further acknowledges that the Services Provider is providing to the Company involves material contact with Company's clients. Provider agrees that during its performance of Services under this Agreement (other than in the proper performance of Provider's Services for the Company), and for a period of twelve (12) months after this Agreement expires or is terminated for any reason, (i) Provider shall not solicit or attempt to solicit business, directly or indirectly, from the Company's clients or actively sought prospective clients, with whom Provider had Material Contact while performing Services for the Company, for the purpose of providing products or services that are competitive with those provided by the Company, and (ii) Provider shall no: directly or indirectly, on Provider's own behalf or on behalf of any other person or entity, solicit or induce, or attempt to solicit or induce, any person who was an employee of the Company during its performance of Services under this Agreement and with whom Provider dealt with or supervised in the course of providing Services during the two years prior to the termination of the Agreement.

1. Definitions. "Material Contact" exists between Provider and each customer or actively sought potential customer with whom Provider had direct or personal contact with while performing Services for the Company during the two-year period prior to the end of Provider's performance of services for the Company. "Products or services that are competitive with those provided by the Company" includes anything of commercial value that is the same as or similar to the products or services of the Company.

1. Events of Default and Remedies. Provider acknowledges and agrees that, by virtue of the duties and responsibilities attendant to Provider's Services for the Company and the special knowledge of the Company's confidential affairs, Confidential Information, business, clients, Trade Secrets and operations that Provider has or will have as a consequence of this Agreement and Provider's relationship with the Company, irreparable loss and damage will be suffered by the Company if Provider should breach or violate any of the covenants and agreements contained in Paragraphs 10 and 11 of this Agreement. Furthermore, Provider agrees that in the event of breach or violation of Paragraph 10 or 11: (i) the Company would suffer irreparable harm; and (ii) it would be difficult to determine damages, and money damages alone would be an inadequate remedy for the injuries suffered by the Company. Therefore, as a result of a violation or breach, the Company may seek an injunctive relief to enforce this Agreement, and the Company shall be entitled to (a) an injunction to prevent a breach or contemplated breach by Provider of any of the covenants or agreements contained in Paragraphs 10 and 11, and (b) attorneys' fees, costs, and disbursements related to pursuing any action or relief for a breach of any of the covenants enumerated above.

The existence of any claim, demand, action or cause of action of Provider against the Company, whether predicated upon this Agreement or otherwise, shall not constitute a defense to the enforcement by the Company of any of the covenants contained herein but may be asserted by way of counterclaim or other action as a separate claim for damages.

1. Severability and Construction. The covenants of Provider set forth in Paragraphs 10 and 11 are of the essence of this Agreement. Each of such covenants shall be deemed and shall be construed as a separate and independent covenant, and should any part or provision of any such covenants be reformed or declared invalid by any court or arbitrator of competent jurisdiction, such reformation or invalidity shall in no way render invalid or unenforceable any other part or provision thereof or any other separate covenant of Provider not declared invalid. Moreover, each covenant should be enforced to the maximum and broadest extent possible, and the Parties intend that a Court or arbitrator may blue pencil such covenants if they are not enforceable in their current form. This Agreement shall be construed according to its fair meaning and not against the Company for drafting it.

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1. Intellectual Property. In addition to and not in lieu of the rights and obligations described in Section 5 of the Standard Terms, any and all elements of Work Product that are works of authorship eligible to be "works made for hire" under the U.S. Copyright Act will be considered works made for hire with NCR as "author." With respect to any Work Product that does not fully qualify for treatment as a work made for hire under the applicable copyright laws, Provider hereby assigns to NCR Provider's entire right, title and interest in and to all such Work Product, to the patent or copyright rights therein, to any registrations thereon, and to any renewal or termination rights therein, without any additional remuneration. Provider hereby waives all moral and similar rights in and to all works and material which Provider has created or will create or author for or at the insistence of NCR, and agrees that NCR and its affiliates will have the unlimited and absolute right to change, alter, revise, add to or subtract from such Work Product and material, together with the right to combine same and any element thereof with materials furnished or created by others, to the extent and in a manner NCR or any of its affiliates may determine in their sole and absolute discretion.

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1. Assignment. Provider may not assign Provider's rights or any material duties herein without the prior written consent of the Company. Any such assignment without the required prior written consent shall be null and void. The Company may assign this Agreement without Provider's prior written consent to any related, successor, parent, subsidiary, or affiliated entity.

1. Entire Agreement. This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior or contemporaneous understanding, negotiations, discussions, communications, and agreements (whether written or oral) between the parties. The Agreement may not be amended, supplemented, or modified unless such amendment, supplement, or modification is in writing and signed by both parties.

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1. Choice of Law. This Agreement shall be construed and interpreted in accordance with the laws of the State of Georgia.

1. Mutual Dispute Resolution. Subject to the requirements of Section 11 of the Standard Terms, any disputes relating to the engagement under the Agreement shall be resolved pursuant to the procedures set forth in this Mutual Dispute Resolution Agreement ("Agreement" or "Arbitration Agreement"). Provider and NCR agree to use the arbitration procedures in this Agreement instead of a trial in court before a judge or jury. Arbitration is the process by which a neutral third party makes a binding decision relating to a dispute.

1. Covered Claims. Other than as provided in this Agreement, Provider and the Company agree that any controversy, dispute, or claim that could otherwise be raised in court ("Covered Claim") that the Company has against Provider or the Provider has against the Company, its current or former officers, directors, members, employees, vendors, clients, customers, agents, parents, subsidiaries, affiliated companies, successors, or assigns, shall be settled exclusively by binding arbitration rather than in court. It is the parties' intent that all claims between them covered by this Agreement are to be resolved through binding arbitration to the fullest extent permitted by federal law, not an administrative proceeding or court. However, if an arbitration award would be rendered ineffectual without provisional relief including, but not limited to, preliminary injunctions or temporary restraining orders, either party may request such relief from a court of competent jurisdiction to preserve the *status quo* pending arbitration.

Covered Claims include, but are not limited to, claims for wages and other compensation, breach of contract, misappropriation of trade secrets or unfair competition, violation of public policy, wrongful termination; tort claims; claims for unlawful retaliation, discrimination and/or harassment; claims for unjustified dismissal; claims for violation of any federal, state, or other government employment law, statute, regulation, or ordinance; and any claim regarding the independent contractor classification.

1. Waiver of Multi-Plaintiff, Class, Collective and Representative Actions ("Waiver"). Covered claims must be brought on an individual basis only, and arbitration on an individual basis is the exclusive remedy. No arbitrator has authority to consolidate claims or proceed with arbitration on multi-plaintiff, class, collective, or representative basis. Should such a claim be initiated in the arbitral forum, the arbitrator shall summarily reject it as beyond the scope of this Agreement. Any disputes concerning the applicability or validity of this Waiver shall be decided by a court of competent jurisdiction, not by the arbitrator. In the event a court determines that this Waiver is unenforceable with respect to any claim, this Waiver shall not apply to that claim, and that claim may only proceed in court as the exclusive forum.

1. Authority to Determine Arbitrability. Except as provided in this Section, the arbitrator shall have the exclusive authority to resolve any dispute relating to the arbitrability of any individual claim or the enforceability or formation of this Agreement (including all defenses to contract enforcement such as, for example, waiver of the right to compel arbitration). Enforcement of this Agreement may not be precluded or delayed on the grounds that (1) a party to this Agreement also is a party to a pending court action or special proceeding with a third party arising out of the same transaction or series of related transactions, or (2) a party to this Agreement asserts arbitrable and non-arbitrable claims.

1. Procedures. The demand for arbitration must be in writing and made within the time period required under the applicable statute of limitations. To initiate arbitration, Provider must deliver the written demand to the Company at _____, Attn: _____. For the Company to initiate arbitration, it must deliver the written demand for arbitration to Provider at the last known address provided by Provider. The party initiating arbitration also must, within the time period required under the applicable statute of limitations, submit the written demand to the arbitration service that will administer the claim (as explained below). The Company shall pay all arbitration fees and costs that would not be incurred in a court proceeding.

The arbitration shall be before a single neutral arbitrator. The rules of the arbitration service used shall govern the arbitration proceedings, but to the extent the rules conflict with this Agreement, the provisions of this Agreement shall apply. Any applicable rules relating to class, collective, multiparty, or representative actions are inapplicable as this Agreement precludes such claims. Each party shall have the right to conduct discovery adequate to fully and fairly present the claims and defenses consistent with the streamlined nature of arbitration.

The arbitrator shall apply the substantive law relating to all claims and defenses to be arbitrated the same as if the matter had been heard in court, including the award of any remedy or relief on an individual basis and any award of costs and attorneys' fees to the prevailing party. Otherwise, the parties shall each bear their own costs and attorneys' fees. The arbitrator's award shall be in writing, with factual findings, reasons given, and evidence cited to support the award. The Parties agree that any arbitration award shall have no preclusive effect as to issues or claims in any other dispute or arbitration proceeding and that arbitrators are barred from giving prior arbitration awards precedential effect. Any authorized decision or award of the arbitrator shall be final and binding on the parties. Any court of competent jurisdiction may enter judgment upon the award, either by (i) confirming the award or (ii) vacating, modifying, or correcting the award on any ground permitted by applicable law.

1. Governing Law, Consideration, Severability, Final Agreement. The Federal Arbitration Act (9 U.S.C. Sections 1, *et seq*.) shall govern this Agreement. State arbitration statutes shall apply only to the extent they are not preempted by the FAA or in instances when the FAA does not apply. If any part of this Agreement is held to be invalid, void, or unenforceable, it shall be interpreted in a manner or modified to make it enforceable. If that is not possible, it shall be severed and the remaining provisions of this Agreement shall remain in full force and effect. This Agreement sets forth the final agreement of the parties and supersedes all prior negotiations, representations or agreements, whether written or oral, pertaining to arbitration of claims covered by the Agreement. By issuance of this Agreement, the Company agrees to be bound without signing it.

1. Advice of counsel. Each party acknowledges that, in executing this Agreement, such party has read and understands all of the terms and provisions of this Agreement and has had the opportunity to consult with legal counsel or has waived the right to do so. The parties agree that this Agreement will not be construed against any party by reason of the drafting or preparation of the Agreement.

1. Severability and Third Party Beneficiaries. In the event that any provision of this Agreement shall be held invalid or unenforceable, such holding shall not invalidate or render unenforceable any other provision hereof. The Parties agree that there are no third-party beneficiaries to this Agreement. The parties agree that any obligation of the parties to indemnify or defend Field Nations in the Agreement shall not apply.

1. Headings. Headings to the Paragraphs of this Agreement are for the convenience of the parties, but are not part of the Agreement, shall have no legal effect, and shall not be used for the interpretation of any provision of this Agreement.